JAY INSLEE
Governor

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TO: Interested Stakeholders

FROM: Governor Jay Inslee

DATE: April 29, 2020

SUBJECT: Implementation of Phase 1 Construction Restart – Proclamation 20-25

As an addendum to Proclamation 20-25, this memorandum serves as the criteria for a limited Phase 1 Construction Restart.

After working with representatives from the Construction Roundtable, we have developed the comprehensive Phase 1 Construction Restart COVID-19 Job Site Requirements and Frequently Asked Questions. These requirements apply to all previously and newly authorized construction activities in Washington as long as Gubernatorial Proclamation 20-25, or any extension thereof, is in effect or if adopted as rules by a federal, state or local regulatory agency.

Authorized construction now includes:

- Construction previously authorized under Proclamation 20-25 and Governor Inslee's March 25, 2020, memo on construction.
- Construction not previously authorized under Proclamation 20-25 and the March 25, 2020, memo that was in existence on March 23, 2020. For purposes of this memo, *in existence* means construction activity that is a) needed to fulfill an obligation under a contract effective prior to March 23, 2020, or b) authorized by a government-issued permit obtained prior to March 23, 2020

Although Proclamation 20-25 and the Governor's March 25, 2020, memo will still be used to determine whether a construction project was *previously authorized*, this memorandum sets aside all restrictions on construction activity in those documents. Specifically, this memorandum allows *authorized construction* that meets a low-risk threshold of six-foot distancing to operate.

In limited circumstances where six-foot distancing requirements cannot be maintained on a specific task on projects previously authorized under Proclamation 20-25, a hazard assessment and control plan must be implemented identifying appropriate PPE use in accordance with Department of Labor & Industries requirements (https://www.lni.wa.gov/forms-publications/F414-164-000.pdf). No newly authorized projects are permitted to break social distancing standards during phase 1.

No jobsite may operate until the contractor can meet and maintain all requirements, including providing materials, schedules and equipment required to comply. Currently operating projects must be in compliance by no later than Friday, May 1.

- **All items minus numbers 28 and 30 are subject to enforcement action under L&I's Division of Occupational Safety and Health (DOSH). Workplace safety and health complaints** may be submitted to the L&I Call Center: (1-800-423-7233) or via e-mail to adag235@lni.wa.gov.
- **General questions about how to comply with construction safety practices** can be submitted to the state's Business Response Center at https://app.smartsheet.com/b/form/2562f1caf5814c46a6bf163762263aa5.
- **All other violations related to Proclamation 20-25** can be submitted at https://bit.ly/covid-compliance.